

HOUSE BILL 2652

By Gant

AN ACT to amend Chapter 167 of the Private Acts of 1994; as amended by Chapter 39 of the Private Acts of 2020; Chapter 30 of the Private Acts of 2023; Chapter 26 of the Private Acts of 2025; and any other acts amendatory thereto, relative to the charter of the Town of Oakland.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Chapter 167 of the Private Acts of 1994, as amended by Chapter 39 of the Private Acts of 2020, Chapter 30 of the Private Acts of 2023, Chapter 26 of the Private Acts of 2025, and any other acts amendatory thereto, is amended in SECTION 7 by deleting subsection 5 and substituting the following:

(5) The Board of Mayor and Aldermen by majority vote of the full Board shall have the power and authority to appoint and remove the Town Recorder who shall serve at the pleasure of the Board, and may be removed by it at any time.

SECTION 2. Chapter 167 of the Private Acts of 1994, as amended by Chapter 39 of the Private Acts of 2020, Chapter 30 of the Private Acts of 2023, and any other acts amendatory thereto, is amended by deleting SECTION 14 and substituting the following:

SECTION 14. Be it further enacted, that the Board of Mayor and Aldermen shall appoint and fix the salary of the Town Manager, who shall serve at the will of the Board of Mayor and Aldermen.

The Board of Mayor and Aldermen shall designate an administrative officer of the town as acting Town Manager to serve during any temporary absence or disability of the manager.

The Town Manager shall be the chief administrative officer of the Town; responsible to the Board of Mayor and Aldermen for the direction and administration of

all offices, departments, and activities placed in his or her charge by this Charter or the Board of Mayor and Aldermen. The Board of Mayor and Aldermen and its members shall deal with the administrative services of the Town solely through the Town Manager, and neither the Board of Mayor and Aldermen nor any member thereof shall give orders to any of the subordinates of the Town Manager, either publicly or privately. The powers and duties of the Town Manager shall be:

1. To discipline all directors and/or department heads and to appoint and remove all subordinate officers and employees, in accordance with any personnel rules and regulations adopted by ordinance or resolution of the Board. He or she may authorize any administrative officer who is subject to his direction and supervision to exercise these powers with respect to subordinates in that officer's department or office;
2. To appoint and remove all directors and/or department heads, excluding the Town Recorder. Department heads shall be considered at-will employees with no expectation of a property right in their positions of employment and may be removed at any time;
3. To see that all laws and ordinances, subject to enforcement by him or her or by officers subject to his direction, are enforced, and upon knowledge or information of any violation thereof, to see that prosecutions are instituted;
4. To attend all Board of Mayor and Aldermen meetings and to have the right to take part in any discussions, but not to vote;
5. To prepare and submit an annual operating budget and an annual capital budget update to the Board of Mayor and Aldermen at the appropriate time;
6. To submit to the Board of Mayor and Aldermen a complete report on the financial condition of each department of the town at the end of each month;
7. To make such other reports on the activities of the Town as the Board of Mayor and Aldermen may require or as he or she sees the need for and to make

such recommendations as in his opinion, are necessary to improve the effectiveness and efficiency of the Town's operations or as needed for the overall good of the Town;

8. To make all purchases for the Town, consistent with Section 19 of this charter; and

9. To perform other duties required by this Charter or the Board of Mayor and Aldermen.

SECTION 3. This act shall have no effect unless it is approved by a two-thirds (2/3) vote of the legislative body of the Town of Oakland. Its approval or nonapproval shall be proclaimed by the presiding officer of the legislative body and certified to the Secretary of State.

SECTION 4. For the purpose of approving or rejecting the provisions of this act, it shall be effective upon becoming law, the public welfare requiring it. For all other purposes, it shall become effective upon being approved as provided in Section 3.